



DEPARTMENT OF THE NAVY  
OFFICE OF THE SECRETARY  
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SECNAVINST 1920.8  
ASN (M&RA)  
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SECNAV INSTRUCTION 1920.8

From: Secretary of the Navy

Subj: SELECTIVE RETIREMENT, SELECTIVE EARLY RETIREMENT,  
SELECTIVE EARLY REMOVAL, AND SELECTIVE EARLY DISCHARGE OF  
NAVY AND MARINE CORPS COMMISSIONED OFFICERS

Ref: See enclosure (1)

Encl: (1) References  
(2) Definitions  
(3) Procedural Guidance for Selective Retirement,  
Selective Early Retirement, Selective Early Removal,  
and Selective Early Discharge Boards

1. Purpose. This instruction implements references (a) through (f) and (i) through (k) and establishes Department of the Navy (DON) policy, procedures, and processing deadlines for the planning, convening, and execution of boards to consider eligible Navy and Marine Corps commissioned officers for selective retirement, selective early retirement, selective early removal, and selective early discharge. This instruction contains new guidance and should be reviewed in its entirety.

2. Applicability. This instruction applies to:

a. Selective retirement boards convened pursuant to sections 573(c) and 581 of reference (a) to consider eligible active-duty chief warrant officers, in the pay grades of W-2 and above, for retirement;

b. Selective early retirement boards convened pursuant to sections 611(b) and 638 or 638a of reference (a) to consider active-duty commissioned officers, in the pay grades of O-5 through O-8, for early retirement;

c. Selective early retirement boards convened pursuant to sections 14101(b) and 14705 of reference (a) to consider eligible Reserve commissioned officers, in the pay grades of O-7 and O-8, for selective early retirement;

d. Selective early removal boards convened pursuant to sections 14101(b) and 14704 of reference (a) to consider eligible Reserve commissioned officers, in any grade and competitive category on the Reserve Active-Status List (RASL), who have at least 30 years of service computed under section 14706 of reference (a) or at least 20 years of service computed under section 12732 of reference (a), for selective early removal from the RASL;

e. Enhanced authority, when authorized by the Secretary of Defense (SECDEF), to convene selective early discharge boards pursuant to section 580a of reference (a) to consider eligible active-duty warrant officers for retirement;

f. Enhanced authority, when authorized by the SECDEF, to convene selective early retirement boards pursuant to section 638a of reference (a) to consider eligible active-duty commissioned officers for selective early retirement.

3. Policy. It is DON policy:

a. To conduct selective retirement, selective early retirement, selective early removal, and selective early discharge boards in compliance with applicable statutes and DoD issuances, in order to accommodate the needs of the Navy and Marine Corps as circumstances warrant. This policy includes the use of enhanced authority, when authorized by the SECDEF, for selective early discharge and selective early retirement of active-duty warrant officers and active-duty commissioned officers, respectively, pursuant to sections 580a and 638a of reference (a) until such authorities expire;

b. To conduct selective retirement from the Warrant Officer Active Duty List (WADL), selective early retirement from the Active Duty List (ADL) or RASL, and selective early removal from the RASL to consider eligible officers in a specified competitive category and grade or particular year group, specialty, or retirement category within a grade and competitive category. These authorities will not be used solely for enhancing promotion opportunity, nor as a substitute for the disposition of commissioned officers who otherwise would be required to show cause for retention in the naval service pursuant to chapters 59, 60, and 1411 of reference (a);

c. To convene separate boards, as appropriate, for each grade, or grade and competitive category, of commissioned officers who are eligible for consideration before any board

convened under this instruction and, when conducting selection boards convened under this instruction, to follow the board procedures established for Promotion Selection Boards (PSBs) in reference (d), e.g., 30-day notice, oaths, board member conduct, and non-disclosure, to the extent practicable;

d. To ensure that all eligible officers are considered by selection boards convened for their grades and competitive categories as required by references (a) and (b). An officer with an approved voluntary retirement request or who is to be involuntarily retired on a date that falls within the fiscal year of the selection board's convening date or during the following fiscal year must not be considered by a selection board convened under this instruction. However, eligible officers may not use voluntary retirement requests as a means to avoid consideration or delay mandatory separation;

e. To provide written instructions and all necessary information and guidance to selection boards;

f. To provide written notification to any officer selected for selective early retirement or selective early removal;

g. To process requests for deferral of mandatory retirement for chief warrant officers and commissioned officers approved for selective early retirement in accordance with sections 581(e) and 638(b)(3), respectively, of reference (a) and reference (e);

h. To process requests for deferral of mandatory retirement or separation for officers on the ADL and RASL in accordance with sections 640 and 14519, respectively, of reference (a).

#### 4. Responsibilities

a. The Assistant Secretary of the Navy for Manpower and Reserve Affairs (ASN (M&RA)) is responsible for management and oversight of Navy and Marine Corps selective retirement, selective early retirement, selective early discharge, and selective early removal boards. When appropriate, the ASN (M&RA) must submit recommended changes to reference (b) directly to Under Secretary of Defense for Personnel and Readiness (USD (P&R)).

b. The Chief of Naval Operations (CNO) and Commandant of the Marine Corps (CMC) are responsible for ensuring Navy and Marine Corps compliance with this instruction, for forwarding

recommendations on requests to convene selection boards under this instruction, and for publishing additional implementing guidance as required. Any requests to use enhanced selective early retirement or selective early discharge authority must be submitted to the SECDEF, via the Secretary of the Navy (SECNAV) and USD (P&R), in accordance with the requirements of enclosure (2) of reference (b).

c. The Chief of Naval Personnel (CNP) and Deputy Commandant of the Marine Corps for Manpower and Reserve Affairs (DC (M&RA)) have primary responsibility for the implementation and execution of this instruction within the Navy and Marine Corps, respectively. In this capacity, CNP and DC (M&RA) are responsible and accountable to the SECNAV, ASN (M&RA), and CNO or CMC, as applicable, for identifying the need to convene any selection board under this instruction when necessary to meet authorized strength and for ensuring strict adherence to this instruction's requirements. The CNP and DC (M&RA) must submit requests for approval of selection boards convened under this instruction as soon as feasible after identifying the need for such boards in the annual promotion plan. Further, because the general purpose of these selection boards is to assist in meeting authorized end-strength, the CNP and DC (M&RA) must ensure that Service regulations and policy relating to voluntary retirement requests comply with the requirements set forth in paragraphs 3f and 8a of enclosure (3) of this instruction.

d. The Judge Advocate General of the Navy (JAG) must review all requests to convene selection boards under this instruction including requests for the use of enhanced authority under sections 580a and 638a of reference (a); all selection board precepts and reports of proceedings for any such boards; and, as appropriate, individual actions pertaining to selective retirement, selective early retirement, selective early discharge, and selective early removal.

e. All administrative support personnel involved in the conduct of selection boards convened under this instruction must ensure that all personally identifiable information collected pursuant to the administration of the selection boards is collected, maintained, disseminated, and used in accordance with applicable DON directives and references (l) and (m).

## 5. Records Management

a. Records created as a result of this instruction, regardless of media and format, must be maintained and

dispositioned according to the records disposition schedules found on the Directives and Records Management Division (DRMD) portal page:

<https://portal.secnav.navy.mil/orgs/DUSNM/DONAA/DRM/SitePages/Home.aspx>.

b. For questions concerning the management of records related to this instruction or the records disposition schedules, please contact your local Records Manager or the DRMD program office.

6. Internal Controls. Per reference (g), the establishment and use of internal controls and accounting procedures are mandated to ensure: effectiveness and efficiency of operations; reliability of financial reporting; and compliance with applicable laws and regulations. Additionally, as part of the annual Manager's Internal Control Program report, the CNP and DC (M&RA) will provide the ASN (M&RA) with copies of the sections of their reports that are relevant to Selective Retirement, Selective Early Retirement, Selective Early Removal, and Selective Early Discharge Boards in the DON. The reports will include summary descriptions of internal controls used, their sufficiency, and any identified weaknesses or deficiencies.

7. Reports. The reporting requirements contained in paragraphs 6 and enclosure (3), paragraphs 9 and 10 are exempt from information collection control, per reference (h), Part IV, paragraphs 7k and 7n.



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<https://www.secnav.navy.mil/doni>

**REFERENCES**

- (a) 10 U.S.C.
- (b) DoD Instruction 1332.32 of 2 May 2014
- (c) DoD Instruction 1320.14 of 11 December 2013
- (d) SECNAVINST 1420.3
- (e) SECNAVINST 1920.6 (Series)
- (f) USD(P&R) Memo of 15 March 2013
- (g) SECNAVINST 5200.35F
- (h) SECNAV M-5214.1
- (i) DoD Instruction 1320.04 of 3 January 2014
- (j) SECNAVINST 1401.3 (Series)
- (k) DoD Instruction 1341.13 of May 31, 2013
- (l) DoD Instruction 5400.11 of 29 October 2014
- (m) DoD 5400.11-R, Department of Defense Privacy Program of 14 May 2007

## DEFINITIONS

1. Active Duty List (ADL). A single list for the Navy or Marine Corps required to be maintained pursuant to section 620 of reference (a) that contains the names of all commissioned officers of that Service who are on active duty, other than officers who are serving on active duty as described in section 641 of reference (a).
2. Commissioned Officer. As used throughout this instruction, commissioned officer refers to all commissioned officers, including warrant and limited duty officers, except when otherwise noted.
3. Competitive Category. A separate promotion category established by the SECNAV, pursuant to sections 621 or 14005 of reference (a) and reference (c), for specific groups of commissioned officers whose specialized education, training, or experience, and often relatively narrow utilization, make separate career management desirable.
4. Reserve Active-Status List (RASL). A single list for the Navy or Marine Corps required to be maintained pursuant to section 14002 of reference (a) that contains the names of all commissioned officers of that Service, other than chief warrant officers, who are in an active status in a Reserve Component of the Navy or Marine Corps and are not on an ADL.
5. Selection Board. A board of commissioned officers, convened under section 573(c), 611(b), or 14101(b) of reference (a), to consider and recommend eligible Navy and Marine Corps commissioned officers on the ADL, WADL, or RASL for selective retirement, selective early retirement, selective early discharge from active duty, or selective early removal from active status before their mandatory dates, per sections 580a, 581, 638, 638a, 14704, and 14705 of reference (a).
6. Warrant Officer Active Duty List (WADL). A single list of all Navy or Marine Corps warrant officers who are on active duty, other than warrant officers described in section 582 of reference (a), that is required to be maintained per section 574 of reference (a).

**PROCEDURAL GUIDANCE FOR SELECTIVE RETIREMENT, SELECTIVE EARLY  
RETIREMENT, SELECTIVE EARLY REMOVAL, AND SELECTIVE EARLY  
DISCHARGE BOARDS**

1. Selection Boards. When a selection board is necessary based on the needs of the Navy or Marine Corps, the CNP or DC (M&RA), as appropriate, must identify this need in the annual promotion plan and expeditiously submit requests for approval of any such boards. The SECNAV may convene selective retirement, selective early retirement, and selective early removal boards based on the recommendations and supporting rationale of the CNO or CMC.

a. Selective Retirement/Early Retirement. Commissioned officers on the ADL in pay grades O-5 through O-8, on the WADL in a chief warrant officer's pay grade W-2 and above, or on the RASL in pay grades O-7 and O-8, may be considered for involuntary retirement prior to mandatory retirement dates determined under relevant sections of reference (a), as applicable.

b. Selective Early Removal. RASL officers in any grade and competitive category, as further outlined in this instruction, may be considered for selective early removal from the RASL.

c. Selective Early Discharge. Regular warrant officers on the WADL who have served at least one year of active duty in their current grade, whose names are not on a list of warrant officers recommended for promotion, and who are neither eligible to be retired under any provision of law nor within two years of retirement eligibility, may be considered for selective early discharge.

d. DoD Policy and Limitations on Use. Reference (b) establishes that it is DoD policy to use sparingly the authority to select commissioned officers for selective retirement or selective early retirement from the ADL, WADL, or RASL, or selective early removal from the RASL. Manpower planning for the DON commissioned officer grade inventory and the management of officer personnel policies that impact these plans should be consistent with this intent. When necessary, use of this authority will be approved as a means of managing an officer grade imbalance or strength overage in a competitive category. It will not be used solely for enhancing promotion opportunity nor as a substitute for the disposition of commissioned officers

who would otherwise be processed for separation for cause under chapters 59, 60, or 1411 of reference (a). The SECNAV will only forward a request for the use of enhanced authority, discussed further in paragraph 6 of this enclosure, to the SECDEF via the USD (P&R) upon receipt of appropriate justification accompanying such request.

2. Submission of Requests. The CNO or CMC, or their respective designees, must submit all requests for the SECNAV to exercise the authority under sections 581, 638, 14704, or 14705 of reference (a). The authority to submit such requests must not be delegated below the CNP or DC (M&RA), respectively. Such requests must include the proposed components, grades, and competitive categories for each specified selection board; the number of officers affected; a copy of the administrative messages that will be presented to eligible officers; the annual promotion plans for the fiscal year when such selection boards are to be convened, as well as the promotion plans for the previous fiscal year; and a justification of why each specified selection board should be convened. Requests for the use of enhanced authority for selective early discharge, selective early retirement, and selective retirement are discussed in paragraph 6 of this enclosure.

### 3. Eligibility for Consideration

a. Selective Early Retirement from the ADL. Section 638 of reference (a) establishes that a Regular commissioned officer on the ADL may be considered for selective early retirement by a selection board convened under section 611(b) of reference (a), as follows:

(1) Grade of O-5. An officer who has failed of selection for promotion to O-6 at least one time and whose name is not on a list of officers recommended for promotion to the next higher grade is eligible for consideration.

(2) Grade of O-6. An officer who has served at least two years of active duty in the grade of O-6 and whose name is not on a list of officers recommended for promotion to the next higher grade is eligible for consideration.

(3) Grade of O-7. An officer who has served at least three and one-half years of active duty in the grade of O-7 and

whose name is not on a list of officers recommended for promotion to the next higher grade is eligible for consideration.

(4) Grade of O-8. An officer who has served at least three and one-half years of active duty in the grade of O-8 and whose name is not on a list of officers recommended for promotion to the next higher grade is eligible for consideration.

b. Selective Retirement from the WADL. Section 581 of reference (a) establishes that a regular chief warrant officer, who holds a grade above W-2, whose name is not on a list of chief warrant officers recommended for promotion to the next higher grade, and who is eligible to retire under any provision of law, may be considered for selective retirement by a selection board convened under section 573(c) of reference (a).

c. Selective Early Retirement from the RASL. Section 14705 of reference (a) confers upon the SECNAV the authority to convene a selection board under section 14101(b) of reference (a) to consider commissioned officers on the RASL serving in an active status in pay grades O-7 or O-8 whenever the SECNAV determines such action is necessary.

d. Selective Early Removal from the RASL. Per section 14704 of reference (a), Reserve commissioned officers of the Navy and Marine Corps for which the SECNAV determines that there are too many officers in any grade and competitive category, who have at least 30 years of service computed under section 14706 of reference (a), or at least 20 years of service computed under section 12732 of reference (a), may be considered for selective early removal from the RASL.

e. The list of eligible officers provided to any selection board convened under this instruction must include each officer on the ADL, WADL, or RASL in the same grade and competitive category whose position on the ADL, WADL, or RASL is between that of the most junior officer in that grade and competitive category whose name is submitted to the board and that of the most senior officer in that grade and competitive category whose name is submitted to the board.

f. The list of eligible officers may not include an officer in that grade and competitive category who has been approved for voluntary retirement as of the date the selection board convenes, or who is to be involuntarily retired under any provision of law during the fiscal year in which the selection board is convened or during the following fiscal year. The following restrictions apply to officers' voluntary retirements concerning their eligibility for a selection board convened under this instruction:

(1) Any officer's request to withdraw an approved voluntary retirement must be denied if, as a result of that approved voluntary retirement request, the officer was ineligible for consideration before a selection board convened under this instruction;

(2) As of the date the board convenes, any officer with an approved voluntary retirement must be retired on the effective date approved for that retirement, unless the CNO or CMC, as applicable, approves a modification of such date in order to prevent personal hardship to the officer or for other humanitarian reasons. This authority may not be delegated below the level of the CNP or DC (M&RA).

(3) Unless a voluntary retirement will be approved as of the date the selection board is scheduled to convene, a voluntary retirement request from any eligible officer must be denied, or approval of such request must be delayed until after approval of the selection board results.

4. Restriction on Reconsideration. As limited by section 638(c) of reference (a), officers serving on the ADL in grades O-5 and O-6 may not be considered for selective early retirement more than once in any five-year period while holding the same grade. Under section 638a of reference (a), the SECDEF may waive the five-year period specified in section 638(c) if the SECDEF determines that it is necessary for the SECNAV to have such authority in order to meet mission needs.

5. Number to Select. The SECNAV must specify the number of officers that a selection board convened under this instruction may recommend. This number may be specified by using a fixed number or percentage of the total number of eligible officers as of the date the selection board convenes. This number may not

be a range of numbers that the board may select (e.g., 20 to 30 percent). Because statutory requirements pertaining to the number of authorized selections vary depending on the authority under which the board is convened, the CNO and CMC must ensure that any request to convene a selection board under this instruction complies with the requirements of the applicable section(s) of reference (a).

a. For a selective early retirement board convened under section 638 of reference (a) to consider officers on the ADL, the SECNAV must specify the number of officers which the board may recommend. The maximum number must not exceed 30 percent of the number of officers considered in each grade in each competitive category.

b. For a selective retirement board convened under section 581 of reference (a) to consider officers on the WADL, the SECNAV must specify the maximum number of officers which the board may recommend.

c. For a selective early removal board convened under section 14704 of reference (a), the SECNAV must specify the number of officers the board may recommend.

d. For a selective early discharge board convened under section 580a of reference (a), the SECNAV must specify the total number of warrant officers to be recommended for discharge, which must not exceed 30 percent of the number of officers considered in each grade in each competitive category, or in each grade, year group, or specialty, or any combination thereof, in each competitive category.

e. For a selective early retirement board convened under section 638a(b)(2) of reference (a), the number of Regular officers on the ADL whom a selection board may recommend for selective early retirement must not be more than 30 percent of the number of officers considered in each grade in each competitive category.

f. For a selective early retirement or discharge board convened under section 638a(b)(3) or section 638a(b)(4) of

reference (a), the total number of officers to be recommended for early retirement or discharge by a selection board may not be more than 30 percent of the number of officers considered.

6. Enhanced Authority for Selective Early Retirement or Early Discharge from the ADL or WADL

a. Submission of Requests. Consistent with the policies stated in this instruction, the CNO or CMC must submit requests for the use of enhanced selective early retirement or enhanced selective early discharge authority to the SECNAV for initial determination. Such requests must include the proposed components, grades, competitive categories, and, if applicable, particular year groups, specialties, or retirement categories for selective early retirement or selective early discharge; a copy of all administrative messages that will be presented to eligible officers; and the number of officers affected within any group subject under the request. For boards convened to manage a grade imbalance or strength overage in a competitive category, requests must include the annual promotion, continuation, and separation plans for the fiscal year when the selection board is to be convened, as well as any such plans for the previous fiscal year; and, a justification of why other alternative measures for managing commissioned officer grade imbalance or strength overages are inadequate such that the specified selection board should be convened. If the SECNAV supports the request, the SECNAV will forward the request to the SECDEF via the USD (P&R) for approval or disapproval. The SECNAV will not consider any such requests beyond the applicable statutory date which any authority granted under either section 580a or 638a of reference (a) expires.

b. Per section 638a of reference (a) and references (b) and (f), if authorized by the SECDEF via USD (P&R), the SECNAV may convene a selection board to consider Regular commissioned officers on the ADL for selective early retirement or selective early discharge as follows:

(1) For selective early retirement, officers in the regular grade of O-5 who have failed of selection for promotion

at least one time and whose names are not on a list of officers recommended for promotion. The SECNAV may also submit to a selection board the names of all eligible officers in a particular grade and competitive category, or who are also in particular year groups, specialties, or retirement categories, or any combination thereof, within that competitive category.

(2) For selective early retirement, officers in the regular grade of O-6 who have served on active duty in that grade for at least two years and whose names are not on a list of officers recommended for promotion. The SECNAV may also submit to a selection board the names of all eligible officers in a particular grade and competitive category, or who are also in particular year groups, specialties, or retirement categories, or any combination thereof, within that competitive category.

(3) For selective early retirement, any other commissioned officers, excluding warrant officers, holding a regular grade below O-6, who are eligible for retirement under section 8323 of reference (a) or who would be eligible after two or less additional years of active service, and whose names are not on a list of officers recommended for promotion. The SECNAV may also submit to a selection board the names of all eligible officers in a particular grade and competitive category, or who are also in particular year groups, specialties, or retirement categories, or any combination thereof, within that competitive category.

(4) For selective early discharge, officers holding a regular grade below O-5, who have served at least one year of active duty in the grade currently held, whose names are not on a list of officers recommended for promotion, and who are not eligible for retirement and are not within two years of becoming eligible for retirement. The SECNAV may also submit to a selection board the names of all eligible officers in a particular grade and competitive category, or who are also in particular year groups, specialties, or retirement categories, or any combination thereof, within that competitive category.

(5) For selective early retirement or discharge, officers holding a regular grade below O-5 who have served at

least one year of active duty in the grade currently held and whose names are not on a list of officers recommended for promotion. The SECNAV may also submit to a selection board the names of all eligible officers in a particular grade and competitive category, or who are also in particular year groups, specialties, or retirement categories, or any combination thereof, within that competitive category.

c. Per section 580a of reference (a) and references (b) and (f), if authorized by the SECDEF via the USD (P&R), the SECNAV may convene a selection board to consider regular warrant officers on the WADL for selective early discharge who have served at least one year of active duty in the grade currently held, whose names are not on a list of warrant officers recommended for promotion to the next higher grade, who are not eligible to be retired under any provision of law, and who are not within two years of becoming retirement eligible. The SECNAV may also submit to a selection board the names of all eligible warrant officers in a particular grade and competitive category, or who are also in particular year groups or specialties, or any combination thereof, within that competitive category.

7. Convening Selection Boards. A separate board will be convened by precept, signed by the SECNAV, for each grade and competitive category designated for selective retirement, selective early retirement, selective early removal, or selective early discharge. Boards must follow the board procedures established for PSBs in reference (d), e.g., 30-day notice, oaths, board member conduct, and non-disclosure, to the extent practicable. Board membership will be composed in accordance with reference (j). Multiple boards may use shared membership, but each must independently convene and adjourn.

8. Information Furnished to Selection Board

a. The SECNAV will furnish the following information to each selection board convened under this instruction at the time it is convened:

(1) Guidelines to ensure the careful consideration of all eligible officers without prejudice or partiality.

(2) A list of names of commissioned officers on the WADL, ADL, or RASL, whom the selection board will consider.

(a) For selection boards convened to consider commissioned officers for selective retirement, selective early retirement, or selective early removal pursuant to section 581, 638, 638a, or 14704 of reference (a), the list of names will include those commissioned officers specified in paragraph 3e of this enclosure, as appropriate.

(b) The list must not include a commissioned officer in that grade and competitive category who has been approved for voluntary retirement, or who is to be involuntarily retired under any provision of law during the fiscal year in which the selection board is convened or during the following fiscal year.

(3) Information pertaining to the needs of the Service for officers with particular skills and the qualifications for the grade and competitive category.

(4) The maximum number of officers that the board must recommend as described in paragraph 5 of this enclosure.

b. The CNP and DC (M&RA) must provide the pertinent records of each officer to be considered for selective retirement, selective early retirement, selective early removal, and selective early discharge.

9. Reports. Each board must submit a written report to the SECNAV listing the names of the officers recommended for selective retirement, selective early retirement, selective early discharge, or selective early removal. For multiple boards, each board must submit separate written reports. The written reports from multiple boards may be combined into a consolidated report of proceedings when appropriate.

a. The report of each selection board must certify that the board has carefully considered the record of each officer whose name was furnished to it and that, based upon the identified needs of the service for officers serving in the grade and competitive category concerned, it is the opinion of a majority

of the members of the board that the retirement, selective early retirement, selective early discharge, or selective early removal of the officers whose names are recommended in the selection board report is in the best interests of the Navy or Marine Corps, as appropriate.

b. The CNO or CMC must forward the selection board report to the SECNAV for approval. All board reports must be reviewed by the JAG prior to submission to the SECNAV.

10. Post-board Procedures and Retirement Grade Determinations. Appropriate retirement grade determinations will be made by the SECNAV for officers selected for early retirement in accordance with sections 1370 and 1371 of reference (a). To facilitate this review, CNP and DC (M&RA) will ensure checks of records for adverse or reportable information, as defined in reference (i), are conducted on officers selected by boards under this instruction. CNP and DC (M&RA) must ensure that all officers are screened through existing databases (NAVIG, Equal Employment Opportunity, Equal Opportunity, National Crime Information Center (to the extent practicable), and Defense Criminal Investigation Index) to identify any adverse or reportable information on any officer selected. Upon completion of the adverse or reportable information screening, the CNP and DC (M&RA) will include an Adverse Information Memorandum with the board report for review by the CNO, CMC, and SECNAV or designee.

a. In cases where the SECNAV is considering retiring an officer in a lower pay grade and that officer, while in the officer's current pay grade, previously appeared before a Board of Inquiry (BOI) and was retained on active duty, the officer will be provided notice and 10 days to submit matters before a final grade determination by the SECNAV.

b. In cases where the SECNAV is considering retiring an officer in a lower pay grade on the basis of adverse information, but that officer was not required to show cause, the SECNAV may require the officer to appear before a BOI for the specific purpose of recommending a retirement grade. Should the officer elect to waive a BOI, the officer's retirement grade must be determined by the SECNAV. For any BOI that is conducted, the recommendation concerning appropriate retirement pay grade is advisory, and the SECNAV retains final authority to determine retirement grade.

c. In cases where an officer is pending a show cause determination or an appearance before either a court-martial or BOI, his or her involuntary retirement or discharge must be held in abeyance until a show cause determination or discharge recommendation, specifically to include appropriate retirement grade, characterization of service, or discharge, is known.

d. In cases where an officer commits misconduct, or is alleged to have committed misconduct, after being selected for early retirement, removal, or discharge, but before the officer's involuntary retirement or discharge is executed, the officer's retirement or discharge will be held in abeyance until a show cause determination is made.

e. In all other cases where an officer has had no identified adverse or reportable information, the officer will be deemed to have served satisfactorily and retired in his or her current pay grade.

11. Retirement of Commissioned Officers, other than Chief Warrant Officers, Selected by a Selective Early Retirement Board

a. A Regular officer of the Navy or Marine Corps in the grade of O-5 or O-6 who is recommended for selective early retirement and whose selective early retirement is approved by the SECNAV must, on the date requested by the officer and approved by the SECNAV, be retired under the applicable provision of law under which the officer is eligible to retire. The retirement date of such officer must not be later than the first day of the seventh calendar month beginning after the month in which the SECNAV approved the report of the selective early retirement board.

b. A Regular or Reserve officer of the Navy or Marine Corps who holds the permanent grade of O-7 or O-8 who is recommended for selective early retirement and whose selective early retirement is approved by the SECNAV must, on the date requested by the officer and approved by the SECNAV, be retired under the applicable provision of law under which the officer is eligible to retire. The retirement date of such officer must not be later than the first day of the tenth month beginning after the month in which the SECNAV approved the report of the selective early retirement board.

c. If the officer is not eligible for retirement under the applicable provision of law, the officer must be retained on active duty until the officer is qualified for retirement under section 8323 of reference (a), and then be retired under that section, unless sooner retired or discharged under another provision of law, not later than the later of the following:

(1) The first day of the month beginning after the month in which the officer becomes qualified for retirement under that section; or

(2) The first day of the seventh calendar month beginning after the month in which the SECNAV approves the board report which recommended the officer for selective early retirement.

d. The selective early retirement of an officer under the provisions of this instruction is considered to be an involuntary retirement for purposes of any other provision of law or regulation. An officer eligible for transfer of Post-9/11 Educational Assistance educational benefits who is involuntarily retired under this instruction is considered to have completed his or her service agreement as a result of being retired for a reduction in force or force shaping under paragraph 3.g.(3) of enclosure 3 of reference (k).

e. On a case-by-case basis, the SECNAV may defer for not more than three months the retirement of an officer otherwise approved for selective early retirement in order to prevent a personal hardship to the officer or for other humanitarian reasons. Per section 638 of reference (a), the SECNAV must be the approval and disapproval authority for all selective early retirement deferral requests.

12. Separation of Commissioned Officers, other than Chief Warrant Officers, Selected by a Selective Early Removal Board. A RASL officer who is recommended for selective early removal must be discharged from the officer's Reserve appointment if the officer is not qualified for transfer to the retired Reserve or does not request transfer to the retired Reserve. The discharge or retirement date of such officer must not be later than the first day of the seventh month beginning after the month in which the SECNAV approved the report of the selective early removal board.

13. Separation of Chief Warrant Officers Selected by a Selective Retirement Board. A chief warrant officer who is recommended for retirement under section 581 of reference (a), and whose retirement is approved by the SECNAV, must be retired under the applicable provision of law under which he is eligible to retire, on the date requested by him and approved by the SECNAV. The retirement date must not be later than the first day of the seventh calendar month beginning after the month in which the SECNAV approves the report of the board that recommended the officer. The SECNAV may defer this retirement for no more than three months in order to prevent a personal hardship to the officer or for other humanitarian reasons. Any such deferral must be made on a case-by-case basis considering the circumstances of the case of the particular officer concerned. The SECNAV must be the approval and disapproval authority for all selective retirement deferral requests.

14. Separation of Warrant Officers Selected by a Selective Early Discharge Board. A warrant officer who is recommended for early discharge by a selection board convened pursuant to section 580a(b) of reference (a), and whose discharge is approved by the SECNAV, must be discharged on a date specified by the SECNAV.